

26VECV00127 26VECV00127

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-23

Motion: DEFENDANT RICHARD IRWIN KANE, TRUSTEE OF THE RICHARD IRWIN KANE 2006 TRUST'S, BRONZETREE TERRACES, LLC'S AND RTI PROPERTIES, INC.'S, DEMURRER TO COMPLAINT AND MOTION TO STRIKE

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Case Number: 26VECV00127 Hearing Date: June 23, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF

CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST

DISTRICT

9000 Arlington Ave. LLC, a California limited liability

company,

Plaintiff,

vs.

Richard Irwin Kane, Trustee Of The Richard Irwin Kane 2006

Trust; Bronzетree Terraces, LLC; RTI Properties, Inc., A California

Corporation; Rediger Investment Mortgage Fund, A California Limited

Partnership, Isaoa; Peak Foreclosure Services, Inc., A California

Corporation; Lida Kohansameh, An Individual, Including "All Persons Unknown,

Claiming Any Legal Or Equitable Right, Title, Estate, Lien Or Interest In The

Property Described In The Complaint Adverse To Plaintiff's Title, Or Any

Cloud Upon Plaintiff's Title Thereto"; and DOES 1-50,

Defendants.

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CASE NO: 26VECV00127

[TENTATIVE] ORDER RE: DEFENDANT RICHARD

IRWIN KANE, TRUSTEE OF THE RICHARD IRWIN KANE 2006 TRUST'S, BRONZETREE

TERRACES, LLC'S AND RTI PROPERTIES, INC.'S, DEMURRER TO COMPLAINT AND MOTION

TO STRIKE

Dept. U

8:30 a.m.

June 23, 2026

I.

BACKGROUND

On

January 8, 2026, 9000 Arlington Ave LLC ("Plaintiff") filed a complaint against

Richard Irwin Kane, Trustee of the Richard Irwin Kane 2006 Trust ("Kane");

Bronzetree Terraces, LLC ("Bronzetree"); RTI Properties, Inc.; Rediger

Investment Mortgage Fund; ISAOA; Peak Foreclosure Services, Inc.; and Lida

Kohansameh (collectively "Defendants"). The complaint contained the following

causes of action: (1) wrongful foreclosure; (2) cancellation of instruments;

(3) promissory estoppel; and (4) quiet title.

Plaintiff

is a limited liability company in California and Cole Moscatel ("Moscatel") is

the sole member. Rediger holds a first priority deed of trust which was recorded against the 23476 Palm Drive Calabasas, California 91302 ("Subject Property"). On April 7, 2025, Plaintiff and Kane and Bronzetre entered into a Second Lien for \$500,000.

II.

LEGAL

STANDARD

a. Demurrer

A

demurrer is a procedure to object to a pleading set forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or other extrinsic matters, a demurrer analysis considers only those defects which appear on the face of the pleading or are judicially noticed. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) When considering demurrers, courts assume the truth of the facts alleged in the pleading and read the allegations liberally and in context. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081.)

b. Motion

to Strike

The Court

has broad authority to strike any portion of a pleading drawn not

within conformity of the law and its orders.¿ (Code Civ. Proc., § 436.) The

trial court shall strike an allegation of punitive damages on motion unless the

plaintiff has pleaded ultimate supporting facts.¿ (Clauson v. Superior

Court (1998) 67 Cal.App.4th 1253, 1255.)

III.

DISCUSSION

a. Judicial

Notice

Kane asks the Court to take judicial notice

of Items 1 to 10. Items 1-3 are real property instruments record with the Los

Angeles Official Records Recorder's Office, and Item 10 is the Trustee's Deed

Upon Sale recorded with the Los Angeles Official Records Recorder's Office.

The Court

grants judicial notice as to the Items 1-3 and 10 according to Evidence Code,

section 452, subdivision (c).

Plaintiff

objects to the Court taking judicial notice of Items 4 to 9. Item 4 is “the

fact that the delivery of good funds by a wire transfer from one bank to

another bank, even domestically, cannot with certainty be confirmed within 25 minutes." Items 5 to 9 are bank websites which purport to establish the delivery time of wire transfers. The Court finds that the information and web pages contained in Items 4 to 9 are not within the proper scope of subjects for judicial notice. Kane requests the Court to take notice of the content of the websites, specifically statements regarding the time it takes for wire transfers to be completed. (*Ragland v. U.S. Bank National Association*, et al. (2012) 209 Cal.App.4th 182, 194) ("The contents of the Web sites and blogs are "plainly subject to interpretation and for that reason not subject to judicial notice.")

Therefore,

the Court denies the request for judicial notice as to Items 4-9.

b. Meet

and Confer

Kane's counsel declares on February 2, 2026,

he sent a meet and confer letter to Plaintiff's counsel. The parties then had discussions regarding the demurrer and motion to strike. It is unclear whether the parties discussed the issues over the phone, via video conference or in-person.

However, the Court will exercise its discretion and decide the motion on its merits.

c. Demurrer

Defendant

demurs to Plaintiff's first through third causes of action alleging they do not state facts sufficient to constitute a cause of action.

i.

First Cause of Action: Wrongful

Foreclosure Cancellation

"The

elements of a wrongful foreclosure cause of action are: (1) the

trustee or mortgagee caused an illegal, fraudulent, or willfully

oppressive sale of real property pursuant to a power of sale in a mortgage or

deed of trust; (2) the party attacking the sale (usually but not always the

trustor or mortgagor) was prejudiced or harmed; and (3) in

cases where the trustor or mortgagor challenges the sale, the trustor or

mortgagor tendered the amount of the secured indebtedness or was excused

from tendering." (Citrus El Dorado, LLC v. Chicago Title Co. (2019)

32 Cal.App.5th 943, 948, quotation marks and brackets omitted.)

Here,

Plaintiff has not sufficiently stated a cause of action for wrongful

foreclosure cancellation. Plaintiff alleges that Defendants proceeded to a

foreclosure sale "in contravention of the ongoing agreement between Plaintiff

and RIT Properties, acting as a loan servicer for Kane and Bronzetre, that the Second Lien Lenders would forbear from foreclosing in exchange for receiving a \$50,000 payment on December 12, 2025 before the foreclosure sale was to occur.”

(Compl., ¶ 42.)

The alleged agreement arises out of a series of text messages and emails between Moscatel and Robert Abbasi, the president of RTI Properties. The exchange between Moscatel and Abbasi began on December 1, 2025 when Abbasi stated “If you send \$5,000 to the account I sent then we can delay the sale til this coming Friday.” (Compl., ¶ 27.) Moscatel then responded on December 2, 2025, stating: “Hi Robert, As per our agreement memorialized in your recent text message wherein you have agreed to accept a wire of \$5,000 in exchange for postponing the auction date to this Friday (December 5), I have initiated a wire to you. Please confirm receipt of the funds once received and when the postpone of the auction has occurred. Thank you!” (Compl., ¶ 28.) The foreclosure sale was continued. (Compl., ¶ 29.) On December 9, 2025, Abbasi stated: “I’ll extend the sale till this coming Friday, but we need a conclusion to this by then, at least on one large payment. There are no other promises or guarantees here, we reserve all of our rights under the loan documents. Thanks.” (Compl., ¶ 32.) On the same day, Abbasi texted stating: “I extended till Friday, but we need results by then.” (Compl., ¶ 33.) The final

text from Moscatel on December 12, 2025, the day of the foreclosure sale, reads:

"Robert, I was able to pull together \$50,000. Can you confirm that if I wire

you this amount now, you will cancel the sale per our discussions? Also, please

confirm the attached wire instructions are correct." (Compl., ¶ 35.) Plaintiff

alleges that Defendants then proceeded with the foreclosure sale. (Compl., ¶¶

36-39.) Kane argues the communications between Plaintiff and Defendants did not

constitute an agreement. In opposition, Plaintiff argues the December 12, 2025,

email is a direct reference to a promise and agreement previously reached

between Plaintiff and Second Lien Lenders. (Opp. p. 6:5-8.)

Plaintiff

had defaulted on the Second Lien on the Property. (Compl., ¶ 21.) The Court

finds Plaintiff has not sufficiently alleged that there was an agreement in

place that Defendants had to accept the \$50,000 offered on December 12, 2025. Moscatel's

December 12, 2025, text message was an offer, which Abbasi was free to accept

or reject. Abbasi never responded to the text message and thus did not accept

Moscatel's offer. (Donovan v. Rrl Corp. (2001) 26 Cal.4th 261, 270-271 ("An essential element of any contract

is the consent of the parties, or mutual assent ... Mutual assent usually is

manifested by an offer communicated to the offeree and an acceptance

communicated to the offeror.") Abbasi, at most, agreed to extend the

deadline until Friday, December 12, 2025. He did not agree to accept a specific

amount, and he did not accept Moscatel's December 12th offer of \$50,000 to cancel the sale. Plaintiff had defaulted on the Second Lien and thus Defendants were entitled to proceed with foreclosure. Therefore, Plaintiff has not sufficiently alleged that Defendants acted illegally, fraudulently, or willfully oppressive in proceeding with the foreclosure sale as scheduled.

Therefore,

the demurrer to the first cause of action is SUSTAINED with leave to amend.

ii.

Second Cause of Action: Cancellation of Instruments

The

necessary elements for cancellation of instrument are: (1) a written instrument; (2) a reasonable apprehension that it may cause serious injury to someone; (3) as to whom it is void or voidable. (Civ. Code., §3412; see also *Kroeker v. Hurlbert* (1940) 38 Cal.App.2d 261, 266.)

Because

Plaintiff has not sufficiently alleged a cause of action for wrongful foreclosure, the cause of action for cancellation of instruments is insufficient because Plaintiff has not alleged the instrument was void or

voidable.

Therefore,

the demurrer to the second cause of action is SUSTAINED with leave to amend.

iii.

Third Cause of Action: Promissory

Estoppel

“The

elements of a promissory estoppel claim are (1) a promise clear and

unambiguous in its terms; (2) reliance by the party to whom

the promise is made; (3) the reliance must be both reasonable and

foreseeable; and (4) the party asserting the estoppel must be injured by his

reliance.” (Flintco Pacific, Inc. v. TEC Management Consultants,

Inc. (2016) 1 Cal.App.5th 727, 734, quotation marks and brackets

omitted.)

Plaintiff

has not sufficiently alleged a promise clear and unambiguous in its terms. Mr.

Abassi’s only promise to Plaintiff was the foreclosure sale would be extended

until December 12, 2025 but they needed “at least one large payment.” (Compl.,

¶ 32.) It is ambiguous as to the amount of what constitutes one large payment.

Plaintiff argues it was \$50,000, however, nowhere in Mr. Abassi’s email does he

state one large payment would be \$50,000. The term "one large payment" is vague and thus any alleged agreement was not unambiguous. Therefore, Plaintiff has not sufficiently alleged a cause of action for promissory estoppel.

Accordingly, the demurrer to the third cause of action is SUSTAINED with leave to amend.

d. Motion

to Strike

Kane moves to strike the following lines

from Plaintiff's complaint:

(1) The

actions of Kane, Bronzetrree and RTI Properties were malicious, oppressive and fraudulent,

and undertaken with a conscious disregard of Plaintiff's rights, and Plaintiff is entitled to an award of punitive

damages as a result." (Compl., p. 8, ¶ 45, Ins. 20-22.)

(2) For

punitive damages against Kane, Bronzetrree and RTI;" (Compl., p. 10, Prayer ¶ 2, In. 25.)

Punitive damages may be recovered upon a proper showing

of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) "Malice" is

defined as conduct intended to cause injury to a person or despicable conduct

carried on with a willful and conscious disregard for the rights or safety of

others. (Turman v. Turning Point of Cent. Cal., Inc. (2010) 191

Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person

to cruel and unjust hardship, in conscious disregard of the person's rights. (Ibid.)

"Fraud" is an intentional misrepresentation, deceit, or concealment of a

material fact known by defendant, with intent to deprive a person of property,

rights or otherwise cause injury. (Ibid.) Conclusory allegations, devoid

of any factual assertions, are insufficient to support a conclusion that

parties acted with oppression, fraud or malice. (Smith v. Superior Court

(1992) 10 Cal.App.4th 1033, 1042.)

Plaintiff has not

sufficiently alleged Defendants acted with malice, fraud, or oppression. As

Plaintiff's allegation for punitive damages was based on the alleged conduct

that gave rise to the first cause of action for wrongful foreclosure, and the

first cause of action has been sustained on demurrer, Plaintiff has not

adequately alleged punitive damages.

Therefore, the

motion to strike is GRANTED.

IV.

CONCLUSION

Defendant

Kane's demurrer to the first through third causes of action is SUSTAINED with twenty

(20) days' leave to amend.

The motion

to strike is GRANTED.

Plaintiff

is to give notice unless all parties

waive notice at the hearing.

DATED: June 16, 2026

Yolanda Orozco